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County: los-angeles

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Case Number: 24TRCV00717 Hearing Date: June 23, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

LAURA MAYELA MORENO

, et al.;

Plaintiffs,

vs.

SUBARU OF AMERICA, INC.

;

Defendant.

Case

No.:

24TRCV00717

Hearing

Date:

June

23, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

plaintiff

laura mayela moreno and michael moreno's motion for attorneys' fees

MOVING PARTY: Plaintiffs, Laura Mayela Moreno

and Michael Moreno

RESPONDING PARTY: Defendant, Subaru of America, Inc.

(1) Plaintiffs Laura Mayela Moreno and Michael

Moreno's Motion for Attorneys' Fees is GRANTED in the reduced amount of

\$28,225.00 pursuant to Civil Code section 1794.

The Court considers the moving

papers filed on March 17, 2026, the opposition brief filed on April 23, 2026,

and the reply brief filed on April 28, 2026.

BACKGROUND

Factual Background

On February 29,

2024, plaintiffs Laura Mayela Moreno and Michael Moreno

(collectively, "Plaintiffs") filed their Complaint against defendants Subaru of America, Inc. ("Defendant")

and DOES 1 through 50. The Complaint includes

the following causes of action: (1) Violation of Subdivision (d) of Civil Code

section 1793.2; (2) Violation of Subdivision (b) of Civil Code section 1793.2;

(3) Violation of Subdivision (a)(3) of Civil Code section 1793.2; (4) Breach of

Express Written Warranty – Civil Code Sections 1791.2, subdivision (a), and

1794; and (5) Breach of the Implied Warranty of Merchantability – Civil Code

sections 1791.1 and 1794.

On January 12, 2026,

Plaintiffs filed a Notice of Settlement of Entire Case.

On February 26,

2026, the parties executed the Settlement Agreement and Release. (Declaration of Susan Suzy Haroutunian ("Haroutunian

Decl."), ¶ 5, Exh. 1.) As part of this

agreement, Plaintiffs received a sum of \$9,500.00 and were designated as the

"prevailing parties" for the purposes of any motion for attorneys' fees and

costs. (Haroutunian Decl., ¶ 5, Exh. 1.)

On March 16, 2026,

Plaintiffs filed their Memorandum of Costs for \$1,764.15.

LEGAL STANDARD

Attorneys'

fees are allowed as costs when authorized by contract, statute, or law. (Code Civ. Proc, § 1033.5, subd.

(a)(10)(B).) In a lemon law action,

costs and expenses, including attorney's fees, may be recovered by a prevailing

buyer under the Song-Beverly Act. (See

Civ. Code, § 1794, subd. (d).)

Section

1794 provides: "If the buyer prevails in an action under this section, the

buyer shall be allowed by the court to recover as part of the judgment a sum

equal to the aggregate amount of costs and expenses, including attorney's fees

based on actual time expended, determined by the court to have been reasonably

incurred by the buyer in connection with the commencement and prosecution of

such action." (Civ. Code, § 1794, subd.

(d).)

Thus, the

statute includes a "reasonable attorney's fees" standard. The attorney bears the burden of proof as to the

"reasonableness" of any fee claim. (Code

Civ. Proc., § 1033.5, subd. (c)(5).) This

burden requires competent evidence as to the nature and value of the services

rendered. (Martino v. Denevi

(1986) 182 Cal.App.3d 553, 559.) "Testimony of an attorney as to the number of

hours worked on a particular case is sufficient evidence to support an award of

attorney fees, even in the absence of detailed time records." (Ibid.)

A

plaintiff's verified billing invoices are prima facie evidence that the costs,

expenses, and services listed were necessarily incurred. (See Hadley v. Krepel (1985) 167

Cal.App.3d 677, 682.) "In challenging

attorney fees as excessive because too many hours of work are claimed, it is

the burden of the challenging party to point to the specific items challenged,

with a sufficient argument and citations to the evidence. General arguments that fees claimed are

excessive, duplicative, or unrelated do not suffice." (Lunada Biomedical v. Nunez (2014) 230

Cal.App.4th 459, 488, quoting Premier Med. Mgmt. Sys., Inc. v. California

Ins. Guarantee Ass'n (2008) 163 Cal.App.4th 550, 564.) The Court has discretion to reduce fees that

result from inefficient or duplicative use of time. (Horsford v. Bd. of Trustees of California

State Univ. (2005) 132 Cal. App. 4th 359, 395.)

In

determining a reasonable attorney fee, the trial court begins with the

lodestar, i.e., the number of hours reasonably expended multiplied by the

reasonable hourly rate. (Warren v.

Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36.) The lodestar may then be adjusted based on

factors specific to the case in order to fix the fee at the fair market value

of the legal services provided. (Ibid.)

The factors that courts look at to

determine if a multiplier is reasonable are: "(1) the novelty and difficulty of

the questions involved, and the skill displayed in presenting them; (2) the

extent to which the nature of the litigation precluded other employment by the

attorneys; (3) the contingent nature of the fee award" and (4) the success

achieved. (Serrano v. Priest

(1977) 20 Cal.3d 25, 49.)

No specific findings

reflecting the court's calculations are required. The record only needs to show that the

attorney's fees were awarded according to the "lodestar" or "touchstone"

approach. The court's focus in

evaluating the facts should be to provide a fee award reasonably designed to

completely compensate attorneys for the services provided.¿ The starting point

for this determination is the attorney's time records. (Horsford v. Board of Trustees of Calif.

State Univ. (2005) 132 Cal.App.4th 359, 395-397 [verified time records

entitled to credence absent clear indication they are erroneous].) However, California case law permits fee

awards in the absence of detailed time sheets. (Sommers v. Erb (1992) 2

Cal.App.4th 1644, 1651; Dunk v. Ford Motor Co. (1996) 48 Cal.App.4th

1794, 1810; Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th

99, 103.) An experienced trial judge is

in a position to assess the value of the professional services rendered in his

or her court. (Serrano, supra,

20 Cal.3d at p. 49.)

DISCUSSION

It is undisputed that

Plaintiffs are the prevailing parties for the purposes of this motion for

attorneys' fees. (Motion, pp. 4:10-5:11;

Haroutunian Decl., ¶

5, Exh. 1.) Plaintiffs assert their

entitlement to attorneys' fees, costs, and expenses pursuant to Civil Code

section 1794, subdivision (d). (Motion, pp. 4:10-5:11.) In contrast, Defendant argues that Plaintiffs

should have pursued this matter as a limited civil case, and asserts that their

failure to do so warrants a denial under Code of Civil Procedure section 1033. (Opp, pp. 2:3-3:13.) The Court finds that Plaintiffs are indeed

entitled to attorneys' fees, costs, and expenses under Civil Code section 1794,

subdivision (d).

Defendant references Chavez

v. City of Los Angeles (2010) 47 Cal.4th 970, 976, in which the Supreme

Court of California held that Code of Civil Procedure section 1033, subdivision

(a), "gives a trial court discretion to deny attorney fees to a plaintiff who

prevails on a FEHA claim but recovers an amount that could have been recovered

in a limited civil case." Nonetheless,

the Supreme Court did not address the applicability of this code section in the

context of Song-Beverly claims when considering the denial of an entire motion

for attorneys' fees, nor does Defendant reference any case law supporting such

a denial.

Consequently,

the Court finds that Code of Civil Procedure section 1033, subdivision (a), is

not relevant in this instance and will award attorney fees pursuant to Civil

Code section 1794, subdivision (d). Plaintiffs move for an award of attorneys' fees in the amount of

\$28,389.00, corresponding to 55.1 hours of work. (Motion, p. 4:7-8; Declaration of Joshua D.

Fennell ("Fennell Decl."), ¶¶ 36, 38, Exh. 17.)

In addition to opposing the motion under Code of Civil Procedure section

1033, subdivision (a), Defendant contends that the Court should reduce the

requested amount to \$6,755.00 for two principal reasons: (1) the number of

hours claimed should be restricted to 19.3, which Defendant considers to be "the

reasonable number of hours for a reasonably requested experienced attorney, in similar circumstances to perform such tasks Plaintiffs' attorneys claimed to have performed[;]" and (2) the hourly rates should be adjusted to \$350.00, as "Plaintiffs' attorneys have not presented competent evidence to support their claimed hourly rates[.]" (Opp., pp. 5:27-6:1, 20-21.)

The Court disagrees with both arguments presented by Defendant. However, the Court finds that the hourly rates for Plaintiffs' paralegals should be adjusted to \$150.00 per hour. Accordingly, Plaintiffs' motion for attorneys' fees is GRANTED in the reduced amount of \$28,225.00.

Reasonableness of the Hourly Rates

Plaintiffs request the hourly rates set out in the following table. (Fennell Decl., ¶¶ 18-20, 36, Exh. 17.)

Name
Position
Years of Experience
2024 Hourly Rate
2025 Hourly Rate
2026 Hourly Rate

Joshua Fennell

Partner

8

\$475.00-\$500.00

\$500.00-\$510.00

\$525.00

Wil Vollbrecht

Associate Attorney

5

\$400.00-\$410.00

\$400.00

\$440.00

Stephanie Argent

Associate Attorney

2

N/A

\$425.00

N/A

Maria Chavarin

Paralegal

Unknown.

\$210.00

N/A

N/A

Elaine Astorga

Paralegal

Unknown.

\$210.00

N/A

N/A

Araceli Alatorre

Paralegal

Unknown.

\$210.00

\$210.00

N/A

Robert Alter

Paralegal

Unknown.

N/A

\$215.00

\$215.00

Jasime Ochoa

Paralegal

Unknown

N/A

\$215.00

N/A

To determine if an hourly rate

is reasonable, courts consider the rates of similar attorneys in the community,

as well as “the experience, skill, and reputation of the attorney requesting

fees.” (Heritage Pacific Financial,

LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009.) In this case, Joshua D. Fennell's declaration

outlines the experience and qualifications of three attorneys. (Fennell Decl., ¶¶ 18-20.) Based on this declaration and the Court's own

experience with the billing rates of Los Angeles-area counsel in similar lemon

law cases, the Court finds that the rates for these attorneys are reasonable

due to their experience and credentials.

However, Plaintiffs have not

provided any information about the experience or qualifications of their

paralegals. (Fennell Decl., ¶ 40.) Consequently, the Court has decided to reduce the hourly rates for the paralegals to \$150.00, as there is not enough justification to support the higher rates of \$210 to \$215.00 for their services. This adjustment results in a total reduction of \$164.00.

Defendant contends that “Plaintiffs’ attorneys have not presented competent evidence to support their claimed hourly rate.” (Opp., p. 6:20-21.) The Court disagrees. As previously discussed, Plaintiffs’ counsel has provided the Court with a comprehensive account of their experience and qualifications. (Fennell Decl., ¶¶ 18-20.) The Court reaches this conclusion independent of the opinions of other trial courts, which are not taken into account.

Excessive

Hours

Defendant

argues that the number of hours claimed should be limited to 19.3, which Defendant considers to be “the reasonable number of hours for a reasonably requested experienced attorney, in similar circumstances to perform such tasks Plaintiffs’ attorneys claimed to have performed.” (Opp., pp. 5:27-6:1.) However, Defendant does not provide a rationale for why this specific number of hours is deemed appropriate for the

circumstances of this case.

Consequently, the Court finds no basis for reducing the hours claimed. As such, Plaintiffs' motion for attorneys'

fees in the reduced amount of \$28,225.00, after deducting \$164.00 from the

initial request of \$28,389.00 is GRANTED.

ORDERS

1)

Plaintiffs Laura

Mayela Moreno and Michael Moreno's Motion for Attorneys' Fees is GRANTED in the

reduced amount of \$28,225.00.

2)

Plaintiffs are

ordered to provide notice of this Court's ruling.

IT IS SO

ORDERED.

DATED: June 23, 2026

Tamara

Hall

Judge

of the Superior Court